

25VECV05238 25VECV05238

County: los-angeles
Division: Civil Law and Motion
Department: U
Hearing date: 2026-06-23
Motion: DEFENDANTS' DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2CU%2C06%2F23%2F2026
Source SHA-256: 7eb17c99ecb51f0d73ae948a4d638d6d02580dc4a006ab07583dc6e066fb104b

Case Number: 25VECV05238 Hearing Date: June 23, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

AARON ROBINSON, an

individual,

Plaintiff,

vs.

KAISER FOUNDATION HOSPITALS, a

California corporation; MARCO L. MUNAR, an individual; JOVEN C. ESPEJO, an

individual; AUGUSTUS D. LADERA, an individual; and DOES 1-20, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 25VECV05238

[TENTATIVE] ORDER RE: DEFENDANTS'

DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

Dept. U

8:30 a.m.

June 23, 2026

I.

BACKGROUND

On September 15, 2025,

Plaintiff Aaron Robinson filed his complaint against Defendant Kaiser

Foundation Hospitals ("Kaiser"), alleging intentional torts and general

negligence. Plaintiff is

self-represented.[1]

On September 22, 2025, Plaintiff filed a form amendment

to correct Kaiser's name from "Kaiser Permanente Hospitals" to "Kaiser

Foundation Hospitals."

On September 23, 2025, Plaintiff filed his first amended

complaint against Kaiser, alleging intentional torts and general negligence.

On January 29, 2026, Plaintiff filed his second amended

complaint (the "SAC") against Defendants Kaiser, Marco L. Munar ("Munar"), Joven

C. Espejo ("Espejo"), and Augustus D. Ladera ("Ladera"), alleging: (1) extortion; (2) stalking; (3)

general negligence; (4) negligent infliction of emotional distress ("NIED");

and (5) intentional infliction of emotional distress ("IIED").

On March 24, 2026,

Defendants filed their demurrer to each cause of action in the SAC.

As of 4:30 P.M. on June

18, 2026, Plaintiff had filed no opposition brief.

II.

LEGAL STANDARD

A demurrer is a procedure to object to a pleading set

forth under Code of Civil Procedure section 430.10, et seq. Because a demurrer tests the pleadings alone and not the evidence or

other extrinsic matters, a demurrer analysis considers only those defects which

appear on the face of the pleading or are judicially noticed. *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905. When considering demurrers, courts assume the truth of the facts

alleged in the pleading and read the allegations liberally and in context. *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081.

A demurrer for sufficiency attacks a pleading on the

ground that it does not contain facts sufficient to state a cause of

action. Code Civ. Proc., § 430.10 (e); *Hahn v. Mirda* (2007) 147

Cal.App.4th 740, 747. Parties may also demur to causes of action

individually. In either case, the procedure is also called a 'demurrer

for sufficiency,' and it tests the pleading by itself, alone and disconnected

from extraneous matters. *Hahn*, at p. 747.

III.

DISCUSSION

Defendants demur to each cause of action in

the SAC: (1) extortion; (2) stalking; (3) general negligence; (4) NIED; and (5)

IIED. (The Court acknowledges that the

body of the SAC combines Plaintiff's claims for negligence and NIED. See SAC, p. 15:3. For purposes of clarity,

the Court will address negligence and NIED as separate causes of action and

conform its ruling to the causes of action as listed on the SAC's caption

page.)

The demurrer will be sustained, with

leave to amend.

a.

Review of Allegations in the SAC

Plaintiff pleads that in

December of 2021, manager Marco Munar texted him asking for his Social Security

number to set up Plaintiff's HealthConnect password. Plaintiff pleads that beginning in the spring

of 2022, coworkers in Plaintiff's department started delivering what Plaintiff

calls "doxing" narratives (scripted, ambiguous dialogues built from personal

information about Plaintiff, delivered in his presence and circulated to

colleagues inside and outside the department), a pattern that Plaintiff alleges

continued until March of 2025. Plaintiff

connects the onset of this pattern to a specific exchange that same spring in

which he complained to charge nurse Joven Espejo that a dialysis machine's

filter options were too narrow. Espejo

allegedly responded by accusing Plaintiff of being slow and, in what Plaintiff

believes was retaliation, sent him to the manager's office on that basis. (SAC,

¶¶ 7, 16.)

Plaintiff pleads that in

2022 and 2023, charge nurse Augustus Ladera repeatedly made or feigned phone calls while pivoting his phone toward Plaintiff. Plaintiff alleges that in 2022, a witness remarked that Ladera had “done terrible, terrible things,” and that around the same time Ladera filed a report against him over a “grandfathered missing policy,” which Plaintiff believes was retaliation tied to a separate Hepatitis-C policy dispute. (SAC, ¶ 23.)

Plaintiff pleads that

on October 16, 2022, he was deliberately assigned to work with a now-retired nurse who acted as a “back-seat driver” on a shared patient, which Plaintiff characterizes as a manufactured problem. Plaintiff pleads that in November of 2022, a witness from another hospital told Plaintiff that people in his department had blocked Plaintiff from applying for a job. (SAC, ¶ 23.)

Plaintiff pleads that on

December 9, 2022, Espejo steered a conversation about holiday gifts into a discussion regarding a specific machine Plaintiff had used to earn outside income. Plaintiff pleads that in March 2023,

he received a threatening text in an unsolicited group message that was framed to look like an autocorrect. Plaintiff

pleads that Espejo wrote “May his soul Rat in Peace.” Plaintiff pleads that on April 17, 2023, and at Espejo’s direction, case manager Chielo Tamayo visited Plaintiff’s patient room

and asked Plaintiff a series of rhetorical, answer-embedded demographic questions that Plaintiff interpreted as conveying a message that coworkers knew where Plaintiff lived and had access to his personal information. (SAC, ¶¶ 7, 20.)

Plaintiff pleads that

on August 3, 2023, he asked Espejo not to access work documents on Plaintiff's

personal phone and instead to use a Kaiser email. Espejo allegedly responded that this meant

Plaintiff didn't trust him and therefore didn't want to work with him. Plaintiff alleges he said he did trust Espejo

but asked why staff had been delivering "doxing" narratives over the prior

eight months. When Espejo denied

understanding the question, Plaintiff asked what staff had given him for

Christmas, to which Espejo replied "I don't even know," prompting Plaintiff's

response, "There it is." Plaintiff

alleges Espejo grew agitated, repeating "he hates this, he hates this," and

called Munar. After a roughly 5-minute

call, Espejo allegedly walked out of the unit and told Plaintiff, "next time

we'll talk about this." Plaintiff

alleges Espejo asked whether Plaintiff was refusing his assignment, restraining

him, or harassing him. Plaintiff alleges

he told Espejo he was abusing his power. (SAC, ¶ 8.)

Plaintiff pleads that

on August 8, 2023, Espejo sent Munar two WhatsApp messages describing the

encounter. The first characterized

Plaintiff's phone request as an affront, noted that Plaintiff had already

clocked out, stated that Espejo told Plaintiff he was free to leave if he wasn't

being productive, and claimed Plaintiff harassed him and made him uncomfortable

while the two walked through a set of double doors. The second alleged that while Espejo was

holding his phone, Plaintiff tried to twist it away from his view, that his

hand hurt afterward and required an ice pack at home, and that he felt

harassed, uncomfortable, shaky, and afraid Plaintiff would "do something bad." (SAC, ¶¶ 10-11.)

Plaintiff pleads that

on August 11-13, 2023, Plaintiff stayed at Motel 6 while visiting family out of

town. Plaintiff pleads that he never

mentioned this trip to anyone at work. (SAC,

¶ 18.)

Plaintiff pleads that

on September 5, 2023, Munar approached Plaintiff during a patient treatment,

mentioned he had another employee meeting that day, and offered to arrange a

union representative, stating "I always offer them to everybody." Plaintiff alleges he asked to reschedule

given the short notice, and the two agreed on Friday, September 15. Plaintiff alleges he separately asked union

representative Pamela Spinner to serve as his representative, and she agreed. (SAC, ¶ 9.)

Plaintiff pleads that on

September 15, 2023, at 9:00 A.M., he met with Munar and two union

representatives, Pamela Spinner and Semanu Mawugbe. Plaintiff pleads Mawugbe's presence was

unexpected. Plaintiff alleges the

meeting opened with a recitation of his rights, followed by questions he

characterizes as rhetorical and loaded, including his start date, his job

description, and whether he had completed certain compliance training. Munar then allegedly turned to "the meat of

what's being alleged," presenting Espejo's account of Plaintiff roughly

twisting his hand. (SAC, ¶¶ 10-15.)

Plaintiff alleges Espejo's

account was false and that neither Plaintiff's recollection nor the August 3

recording reflects any indication Espejo expressed physical pain that day. Plaintiff pleads Espejo's account

conspicuously omitted any mention of the doxing narratives or the

Christmas-gift exchange Plaintiff had raised earlier in that same conversation.

Plaintiff also notes Munar said he had

been on vacation on August 3, which Plaintiff says raises a question as to whom

Espejo actually called that day.

Plaintiff theorizes that Espejo and Munar coordinated their account only

after Munar's return, taking over a month to do so. Plaintiff alleges this portion of the meeting

closed with Munar and Mawugbe characterizing the matter as coming down to "perception"

and a “he said/she said” dispute. (SAC, ¶¶

10-15.)

Plaintiff pleads that later

in the same meeting, Munar asked whether Plaintiff had anything else to raise. Plaintiff alleges he pointed out this was the

fourth time Espejo’s complaints had led to a meeting with Munar, noting an

incident from the spring of 2022 regarding a disparity between his and the

charge nurses’ shift hours, as well as a separate dispute over his right to

chart for patients outside his own assignment. (SAC, ¶ 16.)

Plaintiff alleges that

although Munar and the union representatives gave general advice on these

points individually, they did not acknowledge any pattern. At that point, Mawugbe allegedly interjected,

describing the conversation as “off the record,” delivered a belated union

introduction, and remarked that the matter was “all about communication and

perception.” Plaintiff says Mawugbe

illustrated this point with a comment that if he and Spinner walked into a

Motel 6 unseen but were seen leaving the next morning, observers would draw

their own conclusions. (SAC, ¶ 17.)

Plaintiff alleges he

had stayed at a Motel 6 exactly once that year.

Plaintiff alleges this was the August 11–13 family visit he had told no

one at work about. Plaintiff alleges

that he questioned how Spinner, from a different department, would know this. Plaintiff characterizes the remark as evidence

his location had been tracked and disclosed to deter Plaintiff from reporting

wrongdoing. (SAC, ¶¶ 18-19.)

Plaintiff pleads that no

follow-up meeting occurred after September 15. In November of 2023, Plaintiff alleges he made

repeated requests to Kaiser human resources for his employee file, specifically

asking that any investigations be included, and that the file he ultimately

received showed only green checkmarks with no reference to any investigation or

punitive action. In the months following

the meeting, Plaintiff alleges Mawugbe began making periodic walk-throughs of

the unit, which Plaintiff perceived as monitoring his demeanor. (SAC, ¶¶ 15, 19.)

Plaintiff pleads that

on January 11, 2024, Ladera came to work on an unscheduled day without any

written schedule correction. Charge

nurse Joselyndon Frankera, working that day, assigned both Ladera and Plaintiff

to the same patient room, each with a patient requiring a 3-hour treatment, thus

keeping both individuals in the same room for an extended period. Plaintiff alleges Ladera positioned his phone

in his scrub pocket to function as a hidden camera and charted with his torso

angled so the lens pointed toward Plaintiff.

When Plaintiff asked him to stop, Ladera allegedly told him to “turn

around, look away” and to “get out of my [expletive] face.” (SAC, ¶ 22.)

Plaintiff alleges

several ongoing institutional conditions that he says have persisted throughout

Plaintiff’s roughly 3.5 years at the facility. Plaintiff alleges the unit had no dedicated

program supervisor, leaving the (non-administrative) charge nurses to run the

department informally and self-interestedly, and that a 2023 staff meeting

announced Espejo would locally assume the role of dialysis educator despite

already supervising the same staff he would be training. (SAC, ¶ 25.) Plaintiff alleges “no cellphones” signage was

absent from the unit despite frequent coworker phone use, and that the only

response from management was a comment to “watch your electronics use.” (SAC, ¶ 26.)

Plaintiff alleges the

manager rolled out an unofficial WhatsApp group for the unit, extended

administrative access to a per-diem nurse, and that members posted links and QR

codes to non-Kaiser addresses and that Plaintiff received unsolicited messages

from the Philippines, all on a platform Plaintiff alleges is encrypted and kept

outside Kaiser’s own systems. Plaintiff separately

alleges that QR codes were used routinely at the facility without any described

security vetting. (SAC, ¶¶ 27-28.)

Plaintiff alleges that

although his Kaiser health coverage had been inactive for more than five (5) years, his medical record remained accessible in Epic, that coworkers referenced specific lab results and progress notes from it in unsolicited conversations during 2023–2024, and that his request to restrict access was denied several times. (SAC, ¶ 29.) Plaintiff alleges that calls to Kaiser human resources were answered by an office in the Philippines without his consent, that an HR representative once told him “all your requests are being documented,” and that coworkers referenced details from his HR file during two conversations in 2023–2024 disguised as preparation for a “Magnet Survey.” (SAC, ¶ 29.) Plaintiff alleges his coworkers’ routine use of the Tagalog language during patient care (including, he claims, in combination with the doxing narratives) created a conflict of interest and that the practice extended into Education, IT, Administration, and Human Resources departments. (SAC, ¶ 30.)

Plaintiff pleads that in

the fall of 2024, “fact witness” Carrie Belisle stated to Plaintiff more than once that “if you disappear the boogeyman will find you,” and, when asked who the “boogeyman” was, described the figure using the same nickname Plaintiff says is the department’s own unofficial moniker. Plaintiff alleges he had recently looked into taking a leave of absence but had told no one, and notes that a travel nurse was hired around the same time. (SAC, ¶

21.)

Plaintiff alleges he

reported his concerns to his employer in July of 2025. After two (2) months without a completed

investigation and after being told only that he would receive a closure notice

once Kaiser finished, Plaintiff alleges he concluded the outcome was

predetermined and filed a complaint in September 2025. By October 2025, Plaintiff had relocated to

Washington State, where he resided when this SAC was filed on January 29, 2026.

(SAC, ¶¶ 2, 5.)

b.

Plaintiff's allegations are

insufficient to support claims of extortion and stalking.

Defendants demur to the following causes of

action in the SAC: (1) extortion; and (2) stalking.

The

necessary elements for extortion are: (1) the defendant's wrongful attempt to

extort money; and (2) resulting damages to the plaintiff. *See* *Fuhrman v.*

California Satellite Systems (1986) 179 Cal.App.3d 408, 426, 432 (*Fuhrman*),

overruled on other grounds by *Silberg v. Anderson* (1990) 50 Cal.3d 205,

212. *See*

Under Civil Code section

1708.7, an individual defendant may be liable for the tort of stalking when a plaintiff proves the following elements: (1) the defendant's pattern of conduct; (2) the defendant's intent to follow, alarm, or harass the plaintiff; and (3) that the plaintiff was reasonably fearful for the safety of his self, his immediate family member, or any person who regularly resided in the plaintiff's household in the six months preceding the stalking. In re Brittany K. (2005) 127 Cal.App.4th 1497, 1510 (Brittany K.) (discussing Civ. Code, § 1708.7 and repeating elements). Additionally, "statutory causes of action must be pleaded with particularity." Covenant Care, supra, 32 Cal.4th at p. 790.

Here, Plaintiff generally alleges Defendants (his coworkers at Kaiser) nefariously obtained information about Plaintiff to engage in "creepy scripted dialogues" and "doxing."

(SAC, ¶¶ 7-8.) Plaintiff alleges

that Defendants, together, collected his social security number and had access to Plaintiff's medical records. Plaintiff alleges that he had conflict with other Kaiser employees, including Espejo, and that when Kaiser and Plaintiff's union representative sought to engage in

conflict resolution, Plaintiff interpreted statements made during that process as amounting to extortion.

Plaintiff alleges that during said process, Plaintiff's union representative referenced a Motel 6, which

Plaintiff interpreted as evidence of stalking because Plaintiff had previously

stayed at a Motel 6 during a trip of which his co-workers would not to have

been aware. Plaintiff alleges that in 2023, his case manager asked a series of demographic questions, which Plaintiff

interpreted as attempting to convey that Kaiser knew where Plaintiff

lived. Plaintiff alleges that during

2024, another Kaiser employee told Plaintiff, "the boogiemer will find you,"

and implied that the boogiemer is Kaiser.

Plaintiff

also alleges he was falsely accused of assaulting a minor for purposes of

extortion. (See SAC, ¶ 32.)

Plaintiff's allegations plainly fall short of the

pleading standard required to allege extortion.

While Plaintiff alleges that he interpreted Defendants' conduct over the

course of the course of years as inappropriate and "creepy," Plaintiff fails to

allege any act by Defendant that was an attempt to extort money or

property. Nor does Plaintiff allege the

element of damages. Simply put,

Plaintiff's allegations, read generously, show a pattern of workplace conflict. They do not show an attempt to take

Plaintiff's money or property. For at

least this reason, Plaintiff's extortion claim fails. See Fuhrman,

supra, 179 Cal.App.3d at p. 432 (stating elements of extortion).

Plaintiff's allegations are similarly

insufficient to allege stalking. While

Plaintiff alleges that he was at times suspicious that Defendants had obtained

his personal information (including his travel to a Motel 6) by nefarious

means, Plaintiff fails to allege that Defendants, in fact, followed

Plaintiff. Plaintiff's speculative and

conclusory allegations that he suspected Defendants followed him because they

referenced a certain hotel chain does not show Defendants followed or stalked

Plaintiff to or at that location. Nor

has Plaintiff alleged facts showing he was reasonably fearful for his

safety. Plaintiff's allegation that a

colleague referred to Kaiser as a "boogiemer" that would find Plaintiff is also

conclusory and fails to show that Plaintiff was, in fact, followed or stalked

by Kaiser or by someone at Kaiser's direction.

For at

least these reasons, Plaintiff's stalking claim fails. See Brittany K., supra, 127

Cal.App.4th at p. 1510 (stating elements of stalking).

The demurrer will be sustained as to Plaintiff's

first cause of action for extortion and second cause of action for stalking. As to whether to extend to

Plaintiff leave to further amend his pleading, this ruling marks the first time

a court has ruled on whether Plaintiff's allegations are sufficient to state a

cause of action. While the SAC

constitutes Plaintiff's third attempt at pleading, Plaintiff has not had an

opportunity to amend his pleading allegations after they were reviewed by a

court. The demurrer will be sustained, with

leave to amend.

c.

Plaintiff's allegations are

insufficient to support claims of negligence, NIED, and IIED.

Defendants demur to the following causes of

action in the SAC: (3) general negligence; (4) NIED; and (5) IIED.

The

necessary elements for negligence are: (1) the existence of a legal duty of

care that the defendant owed to the plaintiff; (2) breach; (3) causation; and

(4) damages. County of Santa Clara v. Atlantic Richfield Co.

(2006) 137 Cal.App.4th 292, 318.

The necessary elements

for NIED are: (1) the defendant's

legal duty to use due care; (2) the defendant's breach of such a legal duty;

(3) causation; and (4) damages in the form of serious emotional distress.

Huggins v. Longs Drug Stores California, Inc. (1993) 6 Cal.4th 124, 129.

The necessary elements

for IIED are: (1) outrageous

conduct by the defendant; (2) which was intentional or reckless in nature; (3)

severe emotional distress; and (4) causation. Huntingdon Life

Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129

Cal.App.4th 1228, 1259.

As to IIED and NIED,

a plaintiff "must plead specific facts that establish severe emotional distress

resulting from [a defendant's] conduct."

Michaelian

v. State Comp. Ins. Fund (1996)

50 Cal.App.4th 1093, 1114. A plaintiff

may sufficiently allege severe emotional distress by including facts related to

her resultant depression, anxiety, physical illness; specific allegations as to symptoms may be helpful. See, e.g., *Hailey v. California Physicians' Service* (2007) 158 Cal.App.4th 452, 476-477 (plaintiff sufficiently alleged severe emotional distress by claiming "emotional distress has resulted in vomiting, stomach cramps, and diarrhea"); compare with *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 (trial court appropriately sustained demurrer to IIED claim where plaintiff "pleaded no facts demonstrating the nature, extent or duration of her alleged emotional distress").

Here, Plaintiff's

allegations are insufficient to support a claim sounding in negligence because Plaintiff fails to allege a specific breach of a duty by Defendants that caused Plaintiff damages. While Plaintiff alleges in a broad, conclusory way that Defendants had system failures and that Defendants' employees engaged in conduct and speech that Plaintiff found offensive and "creepy," Plaintiff fails to allege any act or omission by Defendants that caused him damages. For at least these reasons, Plaintiff's negligence and NIED claims fail.

As to Plaintiff's NIED

and IIED claims, both claims fail at least because Plaintiff fails to allege the element of severe emotional distress.

While Plaintiff alleges he was distressed by Defendants' alleged acts of extortion and stalking (which the Court has already found are insufficient to support a cause of action), Plaintiff fails to allege how severe emotional distress manifested by these alleged actions.

Going forward, Plaintiff will need to include specific factual allegations as to specific symptoms and treatments to allege the element of severe emotional distress.

Finally, as to IIED Plaintiff

has not met his pleading burden as to alleging outrageous and offensive conduct. While Plaintiff broadly

characterizes Defendants' conduct as outrageous, the Court agrees with

Defendants that the acts alleged in the SAC appear to describe

personnel-management activities and ordinary conflict resolution between

coworkers and management. The Court

finds nothing in the SAC to support a conclusion that Defendants' conduct was outrageous.

The demurrer will be sustained as to Plaintiff's third,

fourth, and fifth claims of negligence, NIED, and IIED. As to

whether to extend to Plaintiff leave to further amend his pleading, this ruling

marks the first time a court has ruled on whether Plaintiff's allegations are

sufficient to state a cause of action.

While the SAC constitutes Plaintiff's third attempt at pleading,

Plaintiff has not had an opportunity to amend his pleading allegations after

they were reviewed by a court. The

demurrer will be sustained, with leave to amend.

IV.

CONCLUSION

Defendants' demurrer is SUSTAINED,

with leave to amend, as to Plaintiff's Second Amended

Complaint.

Plaintiff is ORDERED to file his

Third Amended Complaint within ten (10) days.

See Cal. Rules of Court, Rule 3.1320(g).

Defendants

are ORDERED to give notice.

DATED: June 23, 2026

Yolanda

Orozco

Judge of the

Superior Court

[1] See *Harding v.*

Collazo (1986) 177 Cal.App.3d 1044, 1056 (self-represented litigants held

to same standards applied to licensed attorneys); see also *Monastero v. Los*

Angeles Transit Co. (1955) 131 Cal.App.2d 156, 160-161 ("litigant is

permitted to present his own case, but, in so doing, should be restricted to

the same rules of evidence and procedure as is required of those qualified to

practice law before our courts").